

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KEITH BROCKETT,

Plaintiff(s),

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER SAM ZITOMER and NEW YORK CITY
POLICE OFFICER "JOHN DOE",**

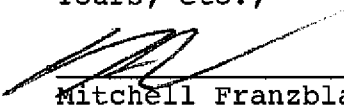
Defendant(s).
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To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 11, 2020

Yours, etc.,



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

City of New York
100 Church Street
New York, New York 10007
New York City Police Officer Sam Zitomer
7th Precint
19 ½ Pitt street
New York, New York 10002
New York City Police Officer "John Doe"
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

KEITH BROCKETT,

VERIFIED COMPLAINT

Plaintiff(s),

Index No:

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER SAM ZITOMER and NEW YORK CITY
POLICE OFFICER "JOHN DOE",**

Defendant(s).

-----X

Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU & ASSOCIATES, PC**, as and for a verified complaint, respectfully allege as follows:

1. That all the times hereinafter mentioned, plaintiffs was, and still is, a resident of the City and State of New York, County of Bronx.

2. At all the times herein, the defendant, **CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in the City of New York, County of Bronx.

3. Upon information and belief, the defendant, **CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, who were herein duly employed and acting New York City Police Officers (or other ranking officers) of the City of New York, County of New York, State of New York and upon information and belief, the defendants, **NEW YORK CITY**

POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE", were and still are, at all times herein mentioned, residents of the City and State of New York.

4. Upon information and belief, that all times herein, the defendants, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE", were and still are employees of The City of New York Police Department as Police Officers (or other ranking officers), and were at all times herein acting within the furtherance and scope of their employment with THE CITY OF NEW YORK. The defendant, CITY OF NEW YORK, is liable and responsible for all of those acts committed by the defendants, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE", pursuant to the doctrine of respondeat superior. THE CITY OF NEW YORK expressly and implicitly condoned all of the actions of NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE", set forth herein and hereinafter.

5. Upon information and belief, THE CITY OF NEW YORK at all times herein, condoned all of the acts of the defendant, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE", as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, both as individuals, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State

of New York, City of New York and the County of New York, and under the authority of their office as Police Officers for New York City.

7. Upon information and belief, that on or about May 12, 2019, on Delancey Street, near and about the Williamsburg Bridge, City and State of New York, County of New York, although the plaintiff was lawfully and properly at said location inside his motor vehicle, he was unlawfully, stopped, pulled over, taken out of his vehicle, had his vehicle improperly searched, frisked and searched in a demeaning manner and assaulted and battered in front of the public, threatened and illegally placed under arrest and imprisoned by the defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, working for and on behalf of **THE CITY OF NEW YORK**.

8. Upon information and belief, the defendants, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, unlawfully accused the plaintiff of crimes and violations and the defendants became abusive toward the plaintiff without any justification and said accusations were completely false and plaintiff was unlawfully placed under arrest.

9. Upon information and belief, the plaintiff was held at the above location and thereafter to the 7th Precinct and thereafter to Central Booking at 100 Center Street and was held, under arrest, and imprisoned from approximately May 12, 2019 at approximately 1:20 p.m. until May 13, 2019 at approximately 10:30 a.m.

10. Upon information and belief, during the time the plaintiff was unlawfully held at the aforesaid location, plaintiff was otherwise forced to undergo great emotional and mental anguish and physical harm, and loss of liberty and freedom.

11. Upon information and belief, that on May 13, 2019 at 10:30 a.m., the plaintiff was released and advised that he was free to go.

12. Upon information and belief, all criminal charges were or will be dismissed against the plaintiff in connection with, or in support of the arrest, search, seizure and imprisonment to which plaintiff was subject as set forth herein.

13. Prior to the commencement of this action, on the 13th day of June, 2019, a Notice of Claim, for plaintiff, **KEITH BROCKETT**, was duly served herein on the defendant. Thereafter, on the 7th day of August, 2019, the City of New York, conducted a 50-H hearing of plaintiff, pursuant to the General Municipal Law. That more than thirty days have expired since the filing of the Notice of Claim, and the defendants have failed and neglected to adjust the claim. This action is timely brought.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and
NEW YORK CITY POLICE OFFICER "JOHN DOE" ON BEHALF OF PLAINTIFF,
KEITH BROCKETT

14. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "13", above as if fully set forth herein.

15. Upon information and belief, on or about May 12, 2019 on Delancey Street near and about the Williamsburg Bridge, City and State of New York, County of Bronx, while the plaintiff, **KEITH BROCKETT**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, pulled plaintiff over, stopped and detained plaintiff and began to assault and search the plaintiff. This search was conducted in a violent and abusive manner during the course of which defendant probed and shoved plaintiff, cuffed and verbally and assaulted, battered and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

16. Upon information and belief, after searching plaintiff's person, as above described, which search did not reveal any incriminatory or dangerous articles defendant placed the plaintiff in handcuffs and compelled the plaintiff to remain at the above location, to the 7th Precinct of the New York City Police Department and to Central Booking, New York, New York.

17. Upon information and belief, plaintiff was held at the above locations and imprisoned therein, and detained, from approximately May 12 at 1:20 p.m. until May 13, 2019 at 10:30 a.m. Said imprisonment and confinement was all without probable cause or

justification and was all precipitated by the unlawful and improper charges and actions of the New York City Police Department and their employees and said actions of defendants were done intentionally and with malice.

18. Upon information and belief, all criminal charges and violations pressed against plaintiff in connection with, or in support of the car stop, arrest, search, seizure, and imprisonment to which plaintiff was subjected as set forth herein were, or will be, dismissed and were unjustified and said confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

19. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **KEITH BROCKETT's** movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

20. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **KEITH BROCKETT**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages, against **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, and was

otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and
NEW YORK CITY POLICE OFFICER "JOHN DOE" ON BEHALF OF PLAINTIFF,
KEITH BROCKETT

21. Plaintiffs repeat, reiterate and reallege each and every allegation number "1" through "20" above, as if fully set forth herein.

22. Upon information and belief, on or about May 2, 2019 at approximately 1:20 p.m. on Delancey Street near and about the Williamsburg Bridge, City and State of New York, County of Bronx, while the plaintiff, **KEITH BROCKETT**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, did falsely arrest the plaintiff.

23. Upon information and belief, at all times herein, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, did assert proper legal authority to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold him against his will.

24. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **KEITH BROCKETT's**, movement was restricted and confined.

25. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

26. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

27. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

28. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **KEITH BROCKETT**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against **NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and
NEW YORK CITY POLICE OFFICER "JOHN DOE" ON BEHALF OF PLAINTIFF,
KEITH BROCKETT

29. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "28", above as if fully set forth hereinafter.

30. Upon information and belief, the defendant, **CITY OF NEW YORK**, owed a duty to the general public to sufficiently train and educate their police officers.

31. Upon information and belief, the aforesaid police officers, defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, were not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, **CITY OF NEW YORK**, was further negligent in hiring and retaining **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, as employees despite having actual and or constructive notice that said employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

32. Upon information and belief, that **THE CITY OF NEW YORK** was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, and the defendants were otherwise negligent.

33. That as a direct and proximate result of the defendant, **THE CITY OF NEW YORK** negligence, including, but not limited to: Their failure to properly and adequately train their police officers, and of the negligence of the defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

34. By reason of the aforesaid **NEGLIGENCE** of defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, the plaintiff, **KEITH BROCKETT**, did suffer shock, mental distress, emotional stress, material loss, emotional damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty, loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE" ON BEHALF OF PLAINTIFF, KEITH BROCKETT

35. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "34", above as if fully set forth hereinafter.

36. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances,

regulations, customs and usages of the State of New York, County of Bronx, City of New York.

37. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting the plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution and freedom from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, all secured by the Constitution of the United State and 42 United Stated Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

38. Upon information and belief, that all the actions set forth herein by various officers of the New York City Police Department, Bronx County, constitute a continuing pattern of harassment toward plaintiff, demanding the compensation of significant damages and punitive damages, as plaintiff's life has been extremely disrupted by this pattern of abuse.

39. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, and the New York City

Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, constituted a continuing pattern of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

40. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, condoned the above unconstitutional conduct by its police officers as is demonstrated by the substantial and reoccurring amount of 42 USC § 1983 claims filed against the **CITY OF NEW YORK** and this official New York City unconstitutional pattern of behavior has been demonstrated and documented on several occasions by both the New York City Police and other investigations and the above actions by the New York City Police Department Police Officers were all part of the **CITY OF NEW YORK's** policy of "Stop and Frisk".

41. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the

plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

42. Plaintiff hereby demands reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE" ON BEHALF OF PLAINTIFF, KEITH BROCKETT

43. Plaintiffs repeat, reiterate and realleges each and every allegation numbered "1" through "42", above as if fully set forth hereinafter.

44. Upon information and belief, on or about May 2, 2019 at approximately 1:20 p.m. near and about the Williamsburg Bridge, City and State of New York, County of Bronx, while the plaintiff, **KEITH BROCKETT**, was lawfully and properly at said location within his motor vehicle, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, civilly assaulted the plaintiff, **KEITH BROCKETT**.

45. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, and the defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, placed the plaintiff, **KEITH BROCKETT**, in imminent fear of violent contact.

46. Upon information and belief, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, acts were intentional and made with malice all against the plaintiff, **KEITH BROCKETT**.

47. Upon information and belief, at all times herein, the plaintiff was aware of the defendants' actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

48. Upon information and belief, by reason of **CIVIL ASSAULT** of the plaintiff, **KEITH BROCKETT**, by the aforesaid defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**, **KEITH BROCKETT**, sustained serious and severe personal injury, physical, mental and emotional injuries and plaintiff demands punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts and demands punitive damages against **NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE"**.

AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER and
NEW YORK CITY POLICE OFFICER "JOHN DOE" ON BEHALF OF PLAINTIFF,
KEITH BROCKETT

49. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "48", above as if fully set forth hereinafter.

50. Upon information and belief, on or about May 2, 2019 at approximately 1:20 p.m. near and about the Williamsburg Bridge, City and State of New York, County of Bronx, while the plaintiff, **KEITH BROCKETT**, was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, civilly battered the plaintiff, **KEITH BROCKETT**.

51. That at the aforesaid time and place the defendant, **CITY OF NEW YORK**, **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, did batter the plaintiff by subjecting the plaintiff, **KEITH BROCKETT**, to offensive bodily conduct, including, but not limited to, improper search of plaintiff, whereby the officers put their hands inside plaintiff's pants and touched plaintiff's genitals and buttocks in public view on the street and placed the handcuffs on plaintiff that were excessively tight causing harm to plaintiff.

52. Upon information and belief, the plaintiff, **KEITH BROCKETT**, never consented to said contact, nor was said contact justified or privileged.

53. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with

malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

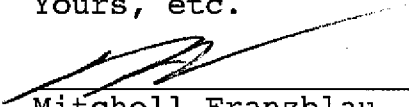
54. Upon information and belief, by reason of the **CIVIL BATTERY** of the plaintiff, **KEITH BROCKETT**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**, the plaintiff, **KEITH BROCKETT**, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against **NEW YORK CITY POLICE OFFICER SAM ZITOMER** and **NEW YORK CITY POLICE OFFICER "JOHN DOE"**.

WHEREFORE, plaintiff demands judgment against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action punitive damages against

defendants, NEW YORK CITY POLICE OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER "JOHN DOE", in the amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
March 11, 2020

Yours, etc.



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

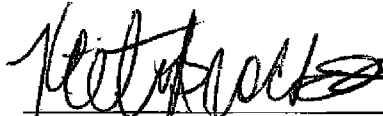
VERIFICATION

State of New York)

SS:

County of Bronx)

Keith Brockett, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


Keith Brockett

Sworn to before me on
March 11, 2020


Notary Public

LAURA PANISSIDI
Notary Public, State of New York
No. 01PA5017882
Qualified in BRONX County
Commission Expires September 13, 2021

Index No.

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KEITH BROCKETT,

Plaintiff(s),

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**CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER SAM ZITOMER and NEW YORK CITY POLICE OFFICER 'JOHN DOE',**

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin Franzblau & Associates, PC
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, NY 10467
718-655-2900

TO: